

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                              |                                                                |                                     |                                                       |                                               |                                            |
|------------------------------------------------------------------------------|----------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>McKenzie Dean                                               | Team:<br>Squad #16                                             | CCRB Case #:<br>202105168           | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                                              |                                                                |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 08/03/2021 6:45 AM, Tuesday, 08/03/2021 7:00 AM | Location of Incident:<br>§ 87(2)(b) 79th Precinct stationhouse | 18 Mo. SOL<br>2/3/2023              | Precinct:<br>79                                       |                                               |                                            |
| Date/Time CV Reported<br>Mon, 08/30/2021 9:13 PM                             | CV Reported At:<br>CCRB                                        | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Mon, 08/30/2021 9:13 PM |                                               |                                            |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)         | Shield | TaxID  | Command |
|----------------------------|--------|--------|---------|
| 1. DT3 Starlette Gillespie | 04534  | 940000 | WARRSEC |
| 2. SGT Richard Sagistano   | 02238  | 939402 | WARRSEC |
| 3. DT3 Michael Parks       | 01790  | 928934 | WARRSEC |
| 4. PO William Dawson       | 02588  | 955858 | WARRSEC |

| Officer(s)                  | Allegation                                                                                                       | Inv. Div. Recommendation |
|-----------------------------|------------------------------------------------------------------------------------------------------------------|--------------------------|
| A . DT3 Starlette Gillespie | Abuse: Detective Starlette Gillespie entered § 87(2)(b) in Brooklyn.                                             | A . Unsubstantiated      |
| B . DT3 Starlette Gillespie | Abuse: Detective Starlette Gillespie entered § 87(2)(b) in Brooklyn.                                             | B . Substantiated        |
| C . SGT Richard Sagistano   | Abuse: Sergeant Richard Sagistano entered § 87(2)(b) in Brooklyn.                                                | C . Substantiated        |
| D . DT3 Michael Parks       | Abuse: Detective Michael Parks entered § 87(2)(b) in Brooklyn.                                                   | D . Substantiated        |
| E . PO William Dawson       | Abuse: Police Officer William Dawson entered § 87(2)(b) in Brooklyn.                                             | E . Substantiated        |
| F . DT3 Starlette Gillespie | Abuse: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie refused to show the arrest warrant to § 87(2)(b) | F . Exonerated           |
| G . SGT Richard Sagistano   | Abuse: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano refused to show the arrest warrant to § 87(2)(b)    | G . Exonerated           |
| H . DT3 Michael Parks       | Force: At § 87(2)(b) in Brooklyn, Detective Michael Parks used physical force against § 87(2)(b)                 | H . Exonerated           |
| I . DT3 Starlette Gillespie | Abuse: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie threatened to arrest § 87(2)(b)                  | I . Exonerated           |
| J . PO William Dawson       | Force: At § 87(2)(b) in Brooklyn, Police Officer William Dawson used physical force against § 87(2)(b)           | J . Unsubstantiated      |

| Officer(s)                  | Allegation                                                                                               | Inv. Div. Recommendation |
|-----------------------------|----------------------------------------------------------------------------------------------------------|--------------------------|
| K . PO William Dawson       | Force: At § 87(2)(b) in Brooklyn, Police Officer William Dawson used physical force against § 87(2)(b)   | K . Unsubstantiated      |
| L . SGT Richard Sagistano   | Force: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano used physical force against § 87(2)(b)      | L . Unsubstantiated      |
| M . DT3 Starlette Gillespie | Discourtesy: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie spoke discourteously to § 87(2)(b) | M . Substantiated        |
| N . SGT Richard Sagistano   | Force: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano tightly handcuffed § 87(2)(b)               | N . Unsubstantiated      |
| O . DT3 Starlette Gillespie | Discourtesy: At the 79th Precinct stationhouse, Detective Gillespie spoke discourteously to § 87(2)(b)   | O . Unsubstantiated      |

### Case Summary

On August 30, 2021, § 87(2)(b) filed this complaint with the CCRB online.

On August 3, 2021, at approximately 6:45 AM, Det. Starlette Gillespie, Sgt. Richard Sagistano, Det. Michael Parks, and PO William Dawson, all of Warrants Section, arrived at the apartment of § 87(2)(b) mother, § 87(2)(b) to apprehend § 87(2)(b) son, § 87(2)(b) on an active ICARD. § 87(2)(b) § 87(2)(b) § 87(2)(b) wife, § 87(2)(b) and § 87(2)(b) 6-year-old and 9-year-old grandchildren were inside. § 87(2)(b) and § 87(2)(b) periodically stayed at the apartment to take care of § 87(2)(b) because she was sick and bedbound.

At § 87(2)(b) in Brooklyn, § 87(2)(b) and § 87(2)(b) opened the door for the officers and Det. Gillespie immediately placed her foot in the doorway, crossing the threshold (**Allegation A: Abuse of Authority, Unsubstantiated**). § 87(2)(b) and § 87(2)(b) spoke with Det. Gillespie at the door about an ICARD for § 87(2)(b) and an arrest warrant associated with the location. The officers allegedly entered and did not show the arrest warrant (**Allegation B-E: Abuse of Authority, Substantiated**) (**Allegation F and G: Abuse of Authority, Exonerated**).

Det. Gillespie and Det. Parks restrained § 87(2)(b) and PO Dawson and PO Sagistano restrained § 87(2)(b). Det. Parks allegedly pushed into § 87(2)(b) back as he held his arm, causing bruising (**BR 23**) (**Allegation H: Force, Exonerated**). Det. Gillespie allegedly told § 87(2)(b) the officers were going to arrest him for interfering with § 87(2)(b) arrest (**Allegation I: Abuse of Authority, Exonerated**). PO Dawson allegedly slammed § 87(2)(b) into a shopping cart (**Allegation J: Force, Unsubstantiated**) and PO Dawson and Sgt. Sagistano allegedly pushed § 87(2)(b) left arm to the top of his back (**Allegation K and L: Force, Unsubstantiated**).

Once § 87(2)(b) was in handcuffs, Det. Gillespie stated, “The fuck is wrong with you,” “Shut the fuck up and stop talking to me,” “Fucking shit, man, on Facebook beating a girl’s ass,” “What the fuck,” and allegedly told him, “You should have just fucking came,” “Shut the fuck up,” and “I don’t give a fuck,” (**Allegation M: Discourtesy, Substantiated**). § 87(2)(b) allegedly told the officers his handcuffs were too tight, and Sgt. Sagistano allegedly tightened them (**Allegation N: Abuse of Authority, Unsubstantiated**). The officers transported § 87(2)(b) to the 79<sup>th</sup> Precinct stationhouse and when they arrived, Det. Gillespie allegedly stated, “You’re a stupid motherfucker for beating on a woman” (**Allegation O: Discourtesy, Unsubstantiated**). § 87(2)(b) was arrested and charged with strangulation and assault (**BR 05**).

BWC footage was not received because Warrants Section was not equipped with cameras at the time of this incident. Two cell phone videos of the incident were provided by § 87(2)(b) (**BR 18-BR 19**).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Detective Starlette Gillespie entered § 87(2)(b) in Brooklyn.**

**Allegation (B) Abuse of Authority: Detective Starlette Gillespie entered § 87(2)(b) in Brooklyn.**

**Allegation (C) Abuse of Authority: Sergeant Richard Sagistano entered § 87(2)(b) in Brooklyn.**

**Allegation (D) Abuse of Authority: Detective Michael Parks entered § 87(2)(b) in Brooklyn.**

**Allegation (E) Abuse of Authority: Police Officer William Dawson entered § 87(2)(b) in Brooklyn.**

**Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie refused to show the arrest warrant to § 87(2)(b)**

**Allegation (G) Abuse of Authority: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano refused to show the arrest warrant to § 87(2)(b)**

It is undisputed that Det. Gillespie was the investigator assigned to § 87(2)(b) ICARD investigation (BR 09) and her database searches of him showed he was associated with § 87(2)(b) apartment. Det. Gillespie conducted further database searches into § 87(2)(b) address, which yielded an arrest warrant (BR 10). Upon the officers' arrival, Det. Gillespie knocked on the door, which was opened from the inside, and § 87(2)(b) was on the other side. Det. Gillespie explained to § 87(2)(b) that he had an ICARD and mentioned a warrant. The officers entered the apartment and arrested § 87(2)(b).

§ 87(2)(b) stated (BR 07) § 87(2)(b) came out of his bedroom and § 87(2)(b) opened the door. § 87(2)(b) stated (BR 06) he opened the door as § 87(2)(b) was in the living room behind him. § 87(2)(b) and § 87(2)(b) stated that when the door was opened, Det. Gillespie put her foot in the doorway, blocking the door from closing.

§ 87(2)(b) stated Det. Parks said the officers had a warrant for the location, and it was on his phone. § 87(2)(b) asked to see the warrant, but the officers did not show him any paperwork. PO Dawson and Sgt. Sagistano pushed Det. Gillespie and Det. Parks inside the apartment onto § 87(2)(b) and then walked around § 87(2)(b) toward § 87(2)(b).

§ 87(2)(b) stated that while speaking with the officers at the door, § 87(2)(b) stepped in between him and the door and told him to stand back. Det. Gillespie said the officers had an ICARD for § 87(2)(b) and a warrant for the premises and § 87(2)(b) told the officers he would turn himself in. § 87(2)(b) held his arm up on the door across the doorway and the officers pushed their way into the apartment past § 87(2)(b) without showing § 87(2)(b) or § 87(2)(b) any paperwork. Before the officers entered, no part of § 87(2)(b) body was ever outside the apartment.

§ 87(2)(b) stated (BR 08) she did not speak with any officers about a warrant, and she was not shown one during the incident. § 87(2)(b) did not witness how the officers entered the apartment because they were already inside when she came out of her bedroom to see what was happening.

Det. Gillespie (BR 11) did not have an independent recollection of placing her foot in the doorway across the threshold when the door was opened. Sgt. Sagistano (BR 12), PO Dawson (BR 13), and Det. Parks (BR 14) did not recall Det. Gillespie doing this when the door was opened.

Det. Gillespie and Sgt. Sagistano stated Det. Gillespie asked § 87(2)(b) for the names of the residents who live in the apartment and § 87(2)(b) provided the name § 87(2)(b) and said that § 87(2)(b) was a family member. PO Dawson and Det. Parks were not certain if Det. Gillespie asked for the last names of the people who lived inside the apartment, but they both stated that this was typically something the officers would do. PO Dawson believed the officers learned that § 87(2)(b) was related to § 87(2)(b) but he did not recall specific details about this. Det. Parks did not have any recollection of § 87(2)(b) confirming that anyone with the last name § 87(2)(b) lived in the apartment.

Det. Gillespie believed § 87(2)(b) was inside the apartment because § 87(2)(b) provided the last name § 87(2)(b) as a resident of the apartment and he stated that § 87(2)(b) was a family member. § 87(2)(b) was a secondary subject whom Det. Gillespie was searching for during the incident, however aside from possessing the arrest warrant, Det. Gillespie did not do any further investigative work regarding § 87(2)(b) prior to visiting the location. Sgt. Sagistano and PO Dawson both stated the officers had reason to believe § 87(2)(b) was inside the apartment and lived there because the warrant indicated she used the address in the past. Det. Parks did not recall anything that the officers knew at the time that led them to believe § 87(2)(b) lived at the location.

Det. Gillespie and Sgt. Sagistano stated § 87(2)(b) asked to see the warrant. Det. Parks stated he did not recall if there was any conversation about the warrant and he did not recall anyone asking to see it. Det. Gillespie stated when § 87(2)(b) requested to see the warrant, she held the copies of the ICARD for § 87(2)(b) and the warrant for § 87(2)(b) in front of her body as she explained what the documents were. Det. Gillespie believed § 87(2)(b) had more than one

opportunity look at the paperwork as she held it in front of her and repeatedly told him, “I showed it to you.” Det. Gillespie did not know if § 87(2)(b) looked at the paperwork while she was holding it and she was not certain if any of her partners showed any documentation to anyone during the incident.

Sgt. Sagistano stated that an officer, whom he did not recall, had a paper copy of the warrant for § 87(2)(b) and Det. Parks had the warrant pulled up on his phone. § 87(2)(b) requested to see the warrant and Det. Parks showed it to him by holding his phone out toward him. When Det. Parks did this, § 87(2)(b) appeared to be looking in the direction of the phone. Sgt. Sagistano did not recall if the paper copy of the warrant was shown to § 87(2)(b).

PO Dawson and Det. Parks had no knowledge of any of the officers showing the warrant to anyone. PO Dawson stated that the officers will often show the warrant to people on their phones, but he did not know which, if any, of the officers had the warrant on their phone. Det. Parks did not recall if any of the officers had the warrant pulled up on their phone.

The officers consistently stated § 87(2)(b) appeared to be willing to leave the apartment to come with them on the ICARD. Det. Gillespie, PO Dawson, and Det. Parks stated § 87(2)(b) began walking out of the apartment. Det. Gillespie stated § 87(2)(b) stepped through the doorway and outside the apartment. Det. Parks stated § 87(2)(b) arm and part of his torso crossed the threshold. PO Dawson did not recall specifically how much of § 87(2)(b) body went outside the apartment, but he knew § 87(2)(b) crossed the threshold of the doorway. Sgt. Sagistano stated § 87(2)(b) did not begin walking out of the apartment and no part of his body ever left the apartment.

Det. Gillespie and Det. Parks stated § 87(2)(b) grabbed § 87(2)(b) and pulled him back into the apartment. PO Dawson stated that § 87(2)(b) either backed up into the apartment himself or § 87(2)(b) pulled him back inside. Det. Gillespie stated her reason for entering the apartment was to apprehend § 87(2)(b). Det. Parks stated he entered behind Det. Gillespie for her safety. PO Dawson stated he entered the apartment because § 87(2)(b) broke the plane of the doorway and because the officers had a warrant. Sgt. Sagistano stated the officers entered the apartment to look for § 87(2)(b) because they had an arrest warrant.

§ 87(2)(b) had an active ICARD for strangulation (BR 09) with probable cause to arrest at the time of the incident. § 87(2)(b) The active arrest warrant (BR 10) associated with § 87(2)(b) apartment lists an individual named § 87(2)(b) § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b), it is recommended that **Allegation A** is **Unsubstantiated**

In Payton v. New York, 445 U.S. 573 (BR 26), the court held that absent exigent or emergency circumstances, warrantless entries into a home are presumptively unreasonable and the threshold may not be crossed without a warrant.

In People v. Skinner 284 A.D.2d 906 (BR 17), the court held that a defendant cannot defeat an arrest which has been set in motion in a public place by the expedient of escaping into a private place.

New York Criminal Procedure Law § 120.80 (BR 16) states that in order to execute a warrant of arrest, officers may, enter any premises in which they reasonably believe the defendant to be present unless the premises in which the officer reasonably believes the defendant to be present is the dwelling of a third party who is not the subject of the arrest warrant. Upon request of the defendant, the officer must show them the warrant if it is in their possession. The officer need not have the warrant in his possession, and, if not, they must show it to the defendant upon request as soon after the arrest as possible.

§ 87(2)(g)



§ 87(2)(g)

Despite Det. Gillespie claiming that § 87(2)(b) was a secondary subject she was looking for at the time of the incident, she had no further information regarding § 87(2)(b) and her whereabouts aside from what was on the arrest warrant. § 87(2)(g)

it is recommended that **Allegation B-E are Substantiated.**

§ 87(2)(g)

it is recommended that **Allegation F and G are Exonerated.**

**Allegation (H) Force: At § 87(2)(b) in Brooklyn, Detective Michael Parks used physical force against § 87(2)(b)**

**Allegation (I) Abuse of Authority: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie threatened to arrest § 87(2)(b)**

**Allegation (J) Force: At § 87(2)(b) in Brooklyn, Police Officer William Dawson used physical force against § 87(2)(b)**

**Allegation (K) Force: At § 87(2)(b) in Brooklyn, Police Officer William Dawson used physical force against § 87(2)(b)**

**Allegation (L) Force: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano used physical force against § 87(2)(b)**

It is undisputed that upon entering the apartment, two of the officers restrained § 87(2)(b) and the other two restrained § 87(2)(b) and § 87(2)(b) resisted the officers. The officers handcuffed § 87(2)(b) and brought him outside the apartment. § 87(2)(b) stated after speaking with the officers for five to ten minutes at the door, Sgt. Sagistano and PO Dawson pushed Det. Parks and Det. Gillespie into him. Det. Parks and Det. Gillespie entered, they each grabbed one of his arms. Sgt. Sagistano and PO Dawson continued inside the apartment toward § 87(2)(b) grabbed his arms, and pushed him up against a wheelchair in the living room. Det. Gillespie told § 87(2)(b) the officers were going to arrest him because he was stopping them from arresting § 87(2)(b) tensed his arms and tried to move them away from the officers. Det. Parks pushed into § 87(2)(b) back as he was holding § 87(2)(b) arm, causing bruising (BR 23). § 87(2)(b) made no mention of an officer pushing § 87(2)(b) arm to the top of his back.

§ 87(2)(b) stated that Det. Gillespie and a white male officer attempted to grab § 87(2)(b) and § 87(2)(b) kept backing up and moving away from them. § 87(2)(b) believed § 87(2)(b) was trying to come toward him. Det. Gillespie told § 87(2)(b) “We could arrest you too.” Det. Parks grabbed § 87(2)(b) arm and put it behind his back. § 87(2)(b) attempted to move toward § 87(2)(b) Det. Parks slammed § 87(2)(b) into a shopping cart in the living room, causing § 87(2)(b) face and chest to hit the shopping cart. Det. Parks pushed § 87(2)(b) left arm to the top of his back until it felt like it was going to break, and a white male officer helped

Det. Parks do this.

§ 87(2)(b) stated she awoke to a female voice saying, “We’re gonna arrest you too” and she exited her bedroom. Det. Gillespie and Det. Parks were each holding onto one of § 87(2)(b) arms. § 87(2)(b) appeared to be trying to pull away from the officers. Sgt. Sagistano and PO Dawson were with § 87(2)(b) left the room to get her cell phone and when she returned, § 87(2)(b) was in handcuffs and the officers were walking him out of the apartment.

The officers consistently stated that upon entering the apartment § 87(2)(b) physically interfered with § 87(2)(b) arrest by getting in the way. PO Dawson and Det. Parks both stated that Det. Parks and Det. Gillespie handcuffed § 87(2)(b) while PO Dawson and Sgt. Sagistano handcuffed § 87(2)(b). Det. Gillespie and Sgt. Sagistano did not recall which officers were dealing with § 87(2)(b) and which were dealing with § 87(2)(b) however Sgt. Sagistano recalled that he dealt with § 87(2)(b).

Det. Gillespie, Det. Parks, and Sgt. Sagistano did not recall an officer slamming § 87(2)(b) into a shopping cart or a wheelchair. PO Dawson stated that § 87(2)(b) was not pushed into a wheelchair or a shopping cart, however, he pressed § 87(2)(b) up against the wall at one point. PO Dawson did this to stabilize and handcuff § 87(2)(b) because he was tightening and flailing his arms and refusing to put them behind his back. The officers consistently stated they did not have any knowledge of an officer pushing § 87(2)(b) arm to the top of his back.

Det. Gillespie did not recall threatening to arrest § 87(2)(b) but stated it was possible because he was committing OGA by preventing the officers from arresting § 87(2)(b). § 87(2)(b) also could have been arrested for assault on a police officer because he pushed the officers away from § 87(2)(b).

PO Dawson, Det. Parks, and Sgt. Sagistano consistently stated they did not witness Det. Gillespie threaten to arrest § 87(2)(b). Det. Parks stated § 87(2)(b) could have been arrested for resisting and for OGA for preventing § 87(2)(b) arrest. PO Dawson did not witness § 87(2)(b) commit OGA because he was dealing with § 87(2)(b). Sgt. Sagistano stated that when § 87(2)(b) was being handcuffed, he was considered under arrest for OGA for intervening with § 87(2)(b) arrest. § 87(2)(b) also could have been arrested for resisting because he refused to put his hands behind his back, and for assault on a police officer for choking Det. Gillespie, which Sgt. Sagistano learned about after officers left the apartment.

Due to inconsistent civilian and officer statements about which officers restrained § 87(2)(b) and which officers restrained § 87(2)(b) subject officers of the force allegations were determined based on the majority of consistent testimonies of § 87(2)(b). PO Dawson, and Det. Parks. Thus, the investigation determined that Det. Parks pushed § 87(2)(b). Det. Gillespie threatened to arrest § 87(2)(b) and PO Dawson and Sgt. Sagistano restrained § 87(2)(b).

Patrol Guide Procedure 221-01 (BR 22) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.

Section 195.05 of the New York Penal Law (BR 21) states that a person is guilty of obstructing governmental administration (OGA) when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force, or interference, or by means of any independently unlawful act.

Although it is in dispute whether Det. Parks pushed into § 87(2)(b) and caused him to sustain bruises, it is undisputed that § 87(2)(b) physically resisted being handcuffed. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation H** is **Exonerated**.

Although none of the officers recalled Det. Gillespie threatening to arrest § 87(2)(b)

given that § 87(2)(b) acknowledged resisting the officers, and that § 87(2)(b) stated § 87(2)(b) appeared to have been trying to come toward him during his arrest, § 87(2)(g)

it is recommended that **Allegation I is Exonerated.**

§ 87(2)(g)  
it is recommended that **Allegation J-L are Unsubstantiated.**

**Allegation (M) Discourtesy: At § 87(2)(b) in Brooklyn, Detective Starlette Gillespie spoke discourteously to § 87(2)(b)**

**Allegation (O) Discourtesy: At the 79th Precinct stationhouse, Detective Starlette Gillespie spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated that after the officers brought him outside the apartment, Det. Gillespie told him, "You should have just fucking came." While inside the police van, Det. Gillespie told § 87(2)(b) "Shut the fuck up." When § 87(2)(b) told the officers his handcuffs were too tight while inside the van, Det. Gillespie said, "I don't give a fuck." When the officers and § 87(2)(b) arrived at the stationhouse, Det. Gillespie told § 87(2)(b) "You're a stupid motherfucker for beating on a woman." § 87(2)(b) and § 87(2)(b) made no mention of Det. Gillespie using profanity during the incident.

Det. Gillespie did not recall using any profanity during the incident. Upon viewing 00:00 to 00:39 of the cell phone video provided by § 87(2)(b) (BR 18), Det. Gillespie stated that the footage refreshed her recollection of making the statements involving profanity that are depicted in the footage. Det. Gillespie used profanity at this point in the incident because she had just been fighting with § 87(2)(b) family, she was upset, and she was in the heat of the moment. Det. Gillespie still did not recall using profanity at any other point in the incident and the video only refreshed her recollection of the statements depicted in the footage. Sgt. Sagistano, PO Dawson, and Det. Parks did not recall Det. Gillespie using profanity during the incident.

At the beginning of the cell phone video provided by § 87(2)(b) (BR 18), Sgt. Sagistano and PO Dawson are bringing § 87(2)(b) who is in handcuffs, out of the apartment. Det. Gillespie states, "The fuck is wrong with you" and, "Shut the fuck up and stop talking to me." At 00:05 into the video, Det. Gillespie states, "You're on Facebook whooping somebody's ass and you got these people here fighting for you." At 00:15 into the video, Det. Gillespie states, "What the fuck. What the fuck." At 00:25 into the video, Det. Gillespie states, "Fucking shit, man" and, "On Facebook beating a girl's ass." The video ends as the officers are still in the hallway with § 87(2)(b)

Patrol Guide Procedure 200-02 (BR 25) states officers must render services with courtesy and civility. Officers may use profanities "in the context of a dynamic situation over which [he or she is] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian (PD v. Pichardo, DAO DCT Case Number 2015-15012) (BR 20).

Despite Det. Gillespie and her partners consistently stating they did not recall her using any profanity toward § 87(2)(b) during the incident, the cell phone footage depicts this occurring.

§ 87(2)(g)  
at the point when Det. Gillespie made the statements depicted in the footage, and at the point when § 87(2)(b) alleged additional profanity use by Det. Gillespie, § 87(2)(b) was in handcuffs and the situation was under control, § 87(2)(g)



§ 87(2)(g)

it is recommended that **Allegation M is Substantiated.**

§ 87(2)(g)

it is recommended that **Allegation O is Unsubstantiated.**

**Allegation (N) Force: At § 87(2)(b) in Brooklyn, Sergeant Richard Sagistano tightly handcuffed § 87(2)(b)**

It is undisputed that the officers handcuffed § 87(2)(b) and brought him down to the police van.

§ 87(2)(b) stated that while he was inside the van, he told the officers his handcuffs were too tight. Sgt. Sagistano came to the back of the van where § 87(2)(b) was seated and tightened his handcuffs. § 87(2)(b) heard the handcuffs click one time. § 87(2)(b) asked Sgt. Sagistano why he tightened his handcuffs, and Sgt. Sagistano did not respond.

Sgt. Sagistano, Det. Gillespie, Det. Parks, and PO Dawson consistently stated they did not recall § 87(2)(b) complaining of his handcuffs being too tight while inside the van. The officers all stated that none of them tightened § 87(2)(b) handcuffs and § 87(2)(b) did not complain of an officer doing this.

§ 87(2)(g)

it is recommended that **Allegation N is Unsubstantiated.**

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 01**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 02**).
- Det. Gillespie has been a member of service for 16 years and has been a subject in 10 CCRB complaints and 24 allegations, one of which was substantiated.
  - 201210114 involved a substantiated allegation of frisk against Det. Gillespie. The Board recommended charges and the NYPD imposed a forfeiture of 2 vacation days.
  - § 87(2)(g)
- Sgt. Sagistano has been a member of service for 17 years and has been a subject in three CCRB complaints and 10 allegations, none of which were substantiated. § 87(2)(g)
- Det. Parks has been a member of service for 21 years and has been a subject in 19 complaints and 45 allegations, five of which were substantiated.
  - 200718670 involved a substantiated allegation of discourtesy against Det. Parks. The Board recommended Command Discipline and the NYPD imposed Command Discipline B.
  - 201001345 involved a substantiated allegation of discourtesy against Det. Parks. The Board recommended Charges and the NYPD imposed Command Discipline B.
  - 202002507 involved substantiated allegations of entry, failure to provide RTKA card, and search of premises against Det. Parks. The Board recommended Formalized training and Command Discipline A and the NYPD imposed Command Discipline B.
- PO Dawson has been a member of service for eight years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

**Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- As of August 16, 2022, a Notice of Claim had not been filed regarding this incident (**BR 24**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: \_\_\_\_\_ 16 \_\_\_\_\_

|               |           |                    |           |
|---------------|-----------|--------------------|-----------|
| Investigator: | _____     | _____              | _____     |
|               | Inv. Dean | Inv. Dean          | 8/30/2022 |
|               | Signature | Print Title & Name | Date      |

|               |            |                    |            |
|---------------|------------|--------------------|------------|
| Squad Leader: | _____      | _____              | _____      |
|               | Patrick Yu | IM Patrick Yu      | 08/31/2022 |
|               | Signature  | Print Title & Name | Date       |

|           |           |                    |       |
|-----------|-----------|--------------------|-------|
| Reviewer: | _____     | _____              | _____ |
|           | Signature | Print Title & Name | Date  |